

		384.) The grounds for vacating an arbitration award are statutorily limited. Under the CAA, the court shall vacate the award if the court determines, inter alia, that “[t]he award was procured by corruption, fraud or other undue means” and “[t]here was corruption by any of the arbitrators.” (Code Civ. Proc., § 1286.2, subds. (a)(1),(2).) Here, Petitioner duly served and timely filed its petition to vacate the award. The petition includes a copy of the arbitration agreement and attaches a copy of the final award. (Petition, Attachment 4(B), 8(C).) Although Respondent argues the petition is untimely because it was filed 102 days after service of the award, the final award was served by email (and mail), which extends the time to file the petition by two court days. (Code Civ. Proc., § 1010.6, subd. (2)(B).) Nevertheless, Petitioner provided no evidence, argument, or authority showing the arbitration award itself was improperly procured. Rather, Petitioner argues the arbitrator provided the final award to JDR on February 4, 2025, but JDR refused to serve the award until full payment of an invoice not agreed upon by the parties. (Petition, Attachment 10(C)(2).) Any purported “fraud” or “corruption” occurred after the final award was rendered. That JDR conditioned service of the award on payment of what Petitioner believes is an excessive invoice is not grounds for vacatur under Code of Civil Procedure section 1286.2. Moreover, Petitioner has not provided any declaration or other admissible evidence to support any of these claims. The petition to vacate the final award therefore is DENIED. In the Opposition, Respondent asks the Court to confirm the final award attached as Exhibit 8(c) to the petition and enter judgment thereon. Under the CAA, “[a] response to a petition . . . may request the court to dismiss the petition or to confirm, correct or vacate the award.” (Code Civ. Proc., § 1285.2.) The request to confirm the award is GRANTED. Respondent’s counsel is ordered to submit a proposed judgment and to give notice of this ruling.
7	<i>Michael Basso, Trustee of the Basso Family Trust vs. Huajin Zhou</i> 2026-01550302	Before the court is a petition to compel arbitration filed by petitioners Michael Basso, Donna Basso, and Joseph Michael Basso, trustees of the Basso Family Trust (collectively, Petitioners) and seeking to compel respondent Huajin Zhou (Respondent) to arbitrate Petitioner’s claims pursuant to

		the parties' arbitration agreement. As set forth below, the petition is GRANTED. The court is required to order arbitration if it determines an agreement to arbitrate the controversy exists and a party to the agreement refuses to arbitrate that controversy, unless a valid defense to enforcement exists. (Code Civ. Proc., § 1281.2, subds. (a)-(c).) The moving party bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. (<i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565.) Here, Petitioners produced evidence Respondent agreed to binding arbitration in the parties' Residential Purchase Agreement and Joint Escrow Instructions (RPA) as to "any dispute or claim in Law or equity arising between them out of this Agreement or any resulting transaction" (Petition, Ex. 1 ¶ 28(A).) This dispute arises out of the RPA. Petitioners demanded arbitration, but Respondent refused. (Verified Petition ¶¶ 7-9.) Respondent failed to file an opposition disputing enforceability of the arbitration agreement. The court therefore GRANTS the petition and Respondent is hereby ordered to submit to arbitration regarding Petitioners' claims consistent with the parties' arbitration agreement. Given these proceedings were commenced simply as a petition seeking to compel arbitration, the proceedings are now complete given Respondent has been ordered to arbitrate the dispute. A new petition will be required for any future relief, such as a petition to confirm, vacate, or correct any future arbitration award. Petitioners' counsel is ordered to give notice of this ruling.
8.	Rodriguez vs. Progressive Select Insurance Company 2026-01546894	Before the court is the petition of petitioner Jeison Snider Serna Rodriguez (Petitioner) to compel respondent Blue Hill Specialty Insurance Company, erroneously sued as Progressive Select Insurance Company (Respondent), to submit to arbitration on Petitioner's underinsured motorist claim under Petitioner's insurance policy with Respondent. Petitioner's petition is defective and deficient in multiple regards. First, Petitioner fails to establish the existence of an arbitration agreement between the parties or its terms. "The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the